

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trailed the hearing on the Motion for Summary Judgment filed by Defendant and Cross-Complainant City of Concord. That hearing is vacated. This CMC is continued to August 21, 2026 at 8:30 a.m.. The Parties are ordered to file a case management conference statement.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-02438

CASE NAME: RYAN JONES VS. JAMES JEWELL

HEARING ON DEMURRER TO: CROSS-COMPLAINT OF COMPASS CALIFORNIA, II INC. AND RUTH FRASSETTO

FILED BY: SWARTZ, ALANNA

TENTATIVE RULING:

Introduction

Before the Court is Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s (collectively referred to as "Vanguard") Demurrer to COMPASS CALIFORNIA, II, INC. and RUTH FRASSETTO's (collectively and hereinafter referred to "Compass") Cross Complaint. The Motion relates to the Compass Cross Complaint for failure to disclose and fraud related causes of action.

Vanguard Cross Defendants demurer to the second [Negligence], fourth [Equitable Indemnity], fifth [Contribution and Equitable Apportionment], sixth [Comparative Indemnity], and seventh [Declaratory Relief] causes of action.

For the reasons explained below, Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s Demurrer is **sustained with leave to amend in part and overruled in part. The Demurrer to the second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.**

Request for Judicial Notice

The Vanguard Cross Defendants request judicial notice of three documents. The first document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Violation of Residential Building Standards; Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose; Rescission, Case No. C23-02438 ("Bee Complaint") filed on September 27, 2023. The second document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Negligence (CCP §2079); Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose, Case No. C2-02483 ("Compass Complaint") filed on October 2, 2023. The third document is Cross-Complainants Compass California, II, INC. and Ruth Frassetto's Cross-Complaint for (1) Express Contractual Indemnity, (2) Negligence, (3) Breach of Contract, (4) Equitable Indemnity, (5) Contribution and Equitable Apportionment, (6) Comparative Indemnity, (7) Declaratory Relief, Case No. C23-02438 (Complaint) filed on August 28, 2025.

All three documents are filings in this consolidated matter, and under the Court grants all the **Vanguard Cross Defendants requests for judicial notice.**

Factual Background

The Cross-Complaint alleges Bee purchased the Property in 2020 from the original builder, Mahmood Pourzand. (Cross-Complaint ¶ 3.) The Cross-Complaint alleges that Ms. Frassetto, and her prior employer, The Grubb Company, represented Bee in their purchase of the Property from Mr. Pourzand in 2020. (Id.) The Cross-Complaint alleges that Ms. Frassetto and her new employer Compass represented Bee, as the sellers in the sale of the Property in 2021. (Cross-Complaint ¶¶ 1, 2.) Vanguard represented Plaintiffs in their purchase of the Property from Bee in 2021. (Cross-Complaint ¶ 5.)

The Cross-Complaint alleges that Plaintiffs and Bee entered an agreement for Plaintiffs to purchase the Property for \$3.1M on July 12, 2021. (Cross-Complaint ¶ 9.) The Cross-Complaint alleges that Plaintiffs filed two separate actions against Bee and Compass in connection with Property. (Cross-Complaint ¶¶ 10, 11.) The Cross-Complaint alleges that Plaintiffs, after moving to the Property discovered Bee and Compass failed to disclose material facts and/or complete information related to the Property. (Cross-Complaint ¶ 13.) The Cross-Complaint alleges that Plaintiffs discovered defects at the Property. (Id.)

The Cross-Complaint also alleges that Plaintiffs allege they did not receive a copy of the disclosures (referred to as “historical disclosures.”) provided by Mr. Pourzand to Bee during the 2020 sale of the Property between Mr. Pourzand and Bee. (Id.) The Cross-Complaint alleges that Vanguard was aware Bee has purchased the Property from Mr. Pourzand and construction had been halted due to unapproved building modifications from the Seller Property Questionnaire (“SPQ”). (Cross-Complaint ¶ 14.) The Cross-Complaint alleges Vanguard requested the historical disclosures from Ms. Frassetto, and Ms. Frassetto requested the same from her prior employer, and the request was denied. (Cross-Complaint ¶ 15.)

The Cross-Complaint alleges Vanguard failed to investigate the historical disclosure by failing to request them from a difference source. (Cross-Complaint ¶ 16.) The Cross-Complaint alleges that Ms. Frassetto advised Bee that she was unable to obtain the historical disclosures, and that Bee advised they would produce the historical disclosures to Plaintiffs. (Cross-Complaint ¶ 17.) The Cross-Complaint alleges that Bee was in possession of the historical disclosures. (Id.)

Legal Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Second Cause of Action for Negligence

“The elements of a cause of action for negligence are well established. They are “(a) a legal duty to

use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury." ' ' ' (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (Peter W. v. San Francisco Unified Sch. Dist. (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Section 2079 requires a broker "to conduct a reasonably competent and diligent visual inspection of the property offered for sale and to disclose to that prospective purchaser all facts materially affecting the value or desirability of the property that such an investigation would reveal . . ." The standard of care is what a reasonably prudent real estate licensee would exercise (§ 2079.2), and disclosure is required on the form used in this case (§ 1102, 1102.6). (Wilson v. Century 21 Great Western Realty (1993) 15 Cal.App.4th 298, 305.)

Here, it is alleged that the Vanguard Defendants (defined as Vanguard Properties LLC and its real estate agent Alanna Schwartz) knew of the unapproved building modifications through disclosure of the issues in the Seller Property Questionnaire for the subject 2021 transaction. (Cross-Complaint ¶ 14.)

The gravamen of the Compass' Cross-Complaint for its second cause of action (negligence) against Vanguard is premised on a duty to procure or obtain documents. Specifically, Cross Complainant Compass alleges that Cross Defendant Vanguard failed to obtain the historical disclosures. (Cross-Complaint ¶ 27.) The Cross Complaint alleges Vanguard requested the historical disclosures from Ms. Frassetto, and Ms. Frassetto requested the same from her prior employer Grubb Co., and the request was denied. (Cross-Complaint ¶ 15.)

On the face of the Compass Cross Complaint, it is alleged that Sellers, Bee Renovated, who was represented by Ms. Frassetto with Compass California in the 2021 transaction, disclosed unapproved building modifications in the Seller Property Questionnaire. (Cross-Complaint ¶ 14.) Although the Court is aware of real estate agents' duty to disclose, the Court is unaware and Compass Cross Complainants did not cite any authority that stands for their position that the Vanguard Cross Defendants violated a duty by failing to take steps to procure the historical disclosures. The **Demurrer to the second cause of action for negligence is sustained with leave to amend.**

Fourth, Fifth, and Sixth Equitable Indemnity Related Causes of Action

Failure to Disclose May Be Pled as Negligence

California courts have found that a real estate agent's failure to disclose facts materially affecting the value or desirability of a property may constitute a negligence cause of action. (Vaill v. Edmonds (1991) 4 Cal.App.4th 247, 261 [failure to disclose the high groundwater level and the risk of landslides associated with the property would constitute a failure to disclose a material fact resulting in a finding of negligence], citing Easton v. Strassburger (1984) 152 Cal.App.3d 90.)

Vanguard Cross Defendants' main argument demurrer of the fourth, fifth, and sixth causes of action for the Compass Cross Complaint is that Compass cannot seek to be indemnified by Vanguard for Compass' own fraud and negligent misrepresentation because Plaintiff's Compass Complaint alleges fraud and negligent misrepresentation against Compass. (Demurrer at p. 11: 17-18.) The Court notes that the first cause of action in Compass Complaint is negligence on the grounds for failure to disclose all facts materially affecting the value or desirability of the Property that an investigation would reveal. (Compass Complaint at ¶¶ 11-16.) The Compass Complaint's remaining causes of action for

fraud-intentional misrepresentation, negligent misrepresentation, and breach of duty to disclose complain of the same factual allegations for failure to disclose as the negligence cause of action and are pled in the alternative of each other. (Compass Complaint at ¶¶ 18-38.)

As the Compass Cross Complainants point out, the Compass Cross Complaint against the Vanguard Cross Defendants is explicitly predicated on negligence and breach of contract theories and does not contain a fraud-based cause of action. (Opposition at p. 7: 19-21.) The Compass Complaint and Cross Complaint properly allege a real estate agent's failure to disclose as negligent based causes of action.

Plaintiffs' May Plead Conflicting Alternative Legal Theories

A plaintiff may plead inconsistent causes of action. (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, 1224.) "When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.) This doubt can arise when plaintiffs are certain of their legal rights but unsure about some of the ultimate facts or when plaintiffs are reasonably certain of the facts but are unsure about their legal rights. (See *Gutierrez v. Southern Pacific Co.* (1959) 174 Cal.App.2d 866, 873.) To accommodate these uncertainties, plaintiffs can generally plead "alternative factual allegations relying on alternative legal theories." (*Williams v. Southern California Gas Co.* (2009) 176 Cal.App.4th 591, 598.)

Given that alternative legal theories may be pled, "it is not proper for the judge to force upon the plaintiff an election between those causes which he has a right to plead." (*Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304 citing *Tanforan v. Tanforan* (1916) 173 Cal. 270, 274.) "Plaintiff is entitled to introduce his evidence upon each and all of these causes of action, and the election, or in other words the decision as to which of them is sustained, is, after the taking of all the evidence, a matter for the judge or the jury." (*Id.*)

This is a consolidated matter and all the causes of action in the Compass Complaint have not been resolved or decided on the merits. Just because there is a fraud cause of action in the Compass Complaint based on failure to disclose, does not instantly preclude Cross Complainant Compass from alleging equitable indemnity claims. It would be premature of the Court to decide on a substantive issue on the merits on a demurrer which is meant to test the sufficiency of the pleadings. The function of a demurrer is to test the sufficiency of the complaint alone and not the evidence or other extrinsic matters. (*Hellum v. Breyer* (2011) 194 Cal.App.4th 1300, 1309 citing *Ingram v. Flippo* (1999) 74 Cal.App.4th 1280, 1283.) The **Demurrer to the fourth, fifth, and sixth causes of action are overruled.**

Seventh Cause of Action for Declaratory Relief

The demurrer to the seventh cause of action is overruled because it was based on the anticipated demurrer of the second, fourth, fifth, and sixth causes of action. Since the Court overruled the demurrer to the fourth, fifth, and sixth causes of action, the **demurrer to the seventh cause of action must also fail based on the argument of there being no actual controversy between the parties.**

Conclusion

For the reasons analyzed above, Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s Demurrer is **sustained with leave to amend in part and overruled in part. The Demurrer to the**

second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.

4. 9:00 AM CASE NUMBER: C23-02955

CASE NAME: NATALIE SCHULTZ VS. BLACKHAWK PLASTIC SURGERY, ET AL.

*HEARING ON MOTION IN RE: SEAL THE INDEX OF EXHIBITS/DECLARATION OF DENISE BILLUPS-SLOANE IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT FILED ON JULY 24, 2025

FILED BY: SCHULTZ, NATALIE

TENTATIVE RULING:

Summary

Plaintiff Natalie Schultz's Motion to Seal the Index of Exhibits is unopposed and is **granted**. No appearance is required at the hearing on April 22, 2026.

Analysis

On December 22, 2025, Plaintiff Natalie Schultz filed a Motion to Seal the Index of Exhibits, which was supported by Notice, Memorandum of Points and Authorities, the Declaration of Counsel Denise Billups-Sloane in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication filed on July 24, 2025, the Declaration of counsel Michael S. Biggs, and a proposed order. The Proof of service demonstrating service of this Motion by electronic mail to counsel for Defendants, Dr. Stephen J. Ronan MD and Blackhawk Plastic Surgery ("Defendants") was filed on December 31, 2025.

Plaintiff seeks to seal the entire index of exhibits, or, in the alternative specifically, Exhibits B, C, D, E, and G of the Index of Exhibits to the Declaration of Denise Billups-Sloane in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication because they contain Plaintiff's private medical records and information that is confidential and protected under applicable privacy laws, including but not limited to the Health Insurance Portability and Accountability Act (HIPAA) and California Constitution, Article I, Section 1. Plaintiff claims that the records were submitted solely to support the Defendants' motion and are not otherwise publicly available. Plaintiff asserts that given the highly personal nature of the medical information contained in the declaration, public disclosure would result in a significant invasion of the plaintiff's privacy and potential harm.

No timely opposition was filed by the Defendants.

Analyses

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession or abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See